25LBCV00282 25LBCV00282

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BACKGROUND

On February 5, 2025, Plaintiffs commenced this action against Defendants Uber Technologies, Inc., Raisier, LLC, Raisier-CA LLC, Juan Torres (“Defendant”), and John Garvey. The operative FAC was filed on July 9, 2025 and alleges negligence, Statutory Liability Under CVC § 17150, and loss of consortium arising out of a motor vehicle collision wherein Plaintiffs allege they were injured while passengers in an Uber.

On July 10, 2026, Defendant Luis Torres filed the instant motion for determination of good faith settlement with Plaintiffs.

As of August 7, 2026, no opposition has been filed.

DISCUSSION

Applicable Law

California Code of Civil Procedure section¿877.6, subdivision¿(a)(1),¿provides, in relevant part, that, on noticed motion, “[a]ny¿party to an action wherein it is alleged that two or more parties are joint¿tortfeasors¿or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff¿. . . and one or more alleged¿tortfeasors¿or co-obligors¿. . . .”¿¿“A determination by the court that the settlement was made in good faith shall bar any other joint¿tortfeasor¿or co-obligor from any further claims against the settling¿tortfeasor¿or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.”¿¿(Code Civ. Proc.,¿§ 877.6, subd.¿(c).)¿¿Although a determination that a settlement was in good faith does not discharge any other party from liability, “it shall reduce the claims against the others in the amount stipulated” by the settlement.¿¿(Code Civ. Proc.,¿§ 877, subd.¿(a).)¿

“Good faith” does not have a precise definition, but may be determined by taking into account a number of factors, including “a rough approximation of plaintiffs’ total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.” (Tech-Bilt, Inc. v. Woodward-Clyde & Assocs. (1985) 38 Cal.3d 488, 499.)
Another key factor is the settling tortfeasor's¿potential liability for indemnity¿to joint tortfeasors. (Far West Fin'l Corp. v. D & S Co.¿(1988)¿46 Cal.3d 796, 816, fn. 16.)

“The party asserting the lack of good faith shall have the burden of proof on that issue.”¿¿(Code Civ. Proc.,¿§ 877.6, subd.¿(d).)

Analysis

Defendant Juan Torres moves for an order determining that a settlement between him and Plaintiffs Lilit Sahakyan, David Mendson, and Emma Sahakyan Mendson, was made in good faith. Defendant’s counsel declares that the parties entered into a Settlement Agreement whereby Plaintiffs agreed to release all liability and dismissal with prejudice of Moving Defendant in exchange for a settlement payment in the amount of $1,000,000.00. (Crossin Decl., ¶ 6.)

Settling Defendant also contends that the settlement amount is reasonable and within the parameters as defined in Techbilt, supra, 38 Cal.App.3d 488, citing the parties’ damages. Plaintiff Lilit Sahakyan’s damages are as follows: $11,044 in past Howell medical specials, $73,728 in past lost wages, and $3 million to $5 million in anticipated pain-and suffering damages. (Crossin Decl., ¶ 7.) Plaintiff

Emma Mendson’s damages are as follows: $205 in past Howell medical specials, no wage loss, and $75,000 to $250,000 in anticipated pain-and-suffering damages. (Id., ¶ 9.) Plaintiff
David Mendson’s derivative loss-of-consortium claim is valued at approximately $25,000 to $35,000. (Id., ¶ 11.)

Here, the Court finds Settling Defendant’s motion well
taken. The Court construes the lack of opposition from the other parties to this action as a tacit admission that Defendant’s motion is meritorious. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410; see also Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215 [“Contentions are waived when a party fails to support them with reasoned argument and citations to authority. [Citation.]”]) The Court also notes the lack of opposition because there is no argument or evidence from any of the parties here that this settlement was made in bad faith, and the party asserting bad faith bears the burden of proof. (Tech-Bilt, supra, 38 Cal.3d at pp. 499-500.) Additionally, there is no indication that
this settlement was the result of collusion, fraud, or tortious conduct aimed at the non-settling defendants.¿While the Agreement itself is not before the Court and it is unclear whether the settlement is to be paid in one payment or over time, or whether each party shall bear their own attorney's fees and costs, that is not fatal to this Motion.¿Moreover, the Court finds $1,000,000 to be fair and reasonable.

However, a Petition for Minor’s Compromise is necessary
to protect the interests of Minor Plaintiff Emma Sahakyan Mendson. Plaintiffs are ordered to file the petition within thirty (30) days of this Order.

CONCLUSION

Defendant Luis Torres’s Motion for
Order Approving Good Faith Settlement with Plaintiffs is GRANTED.

A
Petition for Minor’s Compromise is necessary to protect the interests of Minor Plaintiff Emma Sahakyan Mendson. Plaintiffs are ordered to file the petition within thirty (30) days of this Order.